

24STCV26305 24STCV26305

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MOTION

The Court tenders the following

tentative decision in the matter Rosie Lopez v. Vanessa Brenda Jaquez, et al., Los Angeles County Superior Court case number 24STCV26305, set for hearing on September 11, 2026. Vanessa Brenda Jaquez and Susie Lulu Zorrilla Jaimes (collectively, Defendants) move for the Court to provide notice of the appraised fair market value of the property located at 611, 629, 629 1/2, 635 W 8th St, Pomona, CA 91766 (the Property). Rosie Lopez (Plaintiff) has not filed an opposition to the motion. Defendants' motion is granted.

Tenants in common may bring an action to partition real property owned by all. (Code Civ. Proc., §§ 874.311, et seq.) In such cases, the Court shall determine the fair market value of the property by ordering an appraisal through the appointment of a disinterested real estate developer. (Id., § 874.316, subds. (a), (d).) If an appraisal is conducted in such a way, not later than 10 days after the appraisal is filed the Court shall send notice to each party with a known address stating: "(1) The appraised fair market value of the property. (2) That the appraisal is available at the court clerk's office. (3) That a party may file with the court an objection to the appraisal not later than 30 days after the notice is sent, stating the grounds for the objection." (Id., § 374.316, subd. (e).)

Here, Defendants filed the appraisal with the Court on July 2, 2026. (Resnick Decl. ¶ 4, Ex. 3.) Thus, the Court must issue notice of the appraisal pursuant to Code of Civil Procedure section 374.316, subdivision (e). Accordingly, the Court grants Defendants' motion.